

End-User License Agreement (EULA) — Get Goods Gratis (Free)

⚠ **DRAFT — NOT LEGAL ADVICE.** This is an inventor-prepared **template** End-User License Agreement for qualified counsel to review, tailor, and approve before it is published or relied upon. Bracketed items **[LIKE THIS]** are decisions for counsel/owner. It is written to fit this platform (a retail/e-commerce marketplace delivered as a website/PWA and companion iOS/Android apps, with downloadable software and games sold as one searchable store category, and a closed-loop non-cashable store-credit economy). It is distinct from, and cross-references, the platform's **Terms of Service** and **Privacy Policy**. Prepared 2026-09-13.

0. What this EULA is (and is not) — orientation

This EULA governs the **license to use the Get Goods Gratis (Free) application software** itself — the website/PWA and the native mobile apps ("the App"). It is **separate** from:

- the **Terms of Service** (the contract for using the marketplace/service and the closed-loop economy), and
- any **third-party publisher license** that accompanies a downloadable product (a game or software title) a user buys or downloads through the store — those carry the **publisher's own EULA**, which the user accepts directly with that publisher (see §7, Third-Party Products).

If there is a conflict, **[counsel to set the order of precedence]** — typically: a mandatory app-store license term > this EULA (for the App) > Terms of Service (for the service) > a third-party publisher EULA (for that product)].

1. Acceptance and eligibility

By downloading, installing, or using the App, you agree to this EULA. If you do not agree, do not use the App. You must be **at least 18 years old** to use the App (consistent with the platform's 18+ Terms of Service).

2. License grant

Subject to your compliance with this EULA, **[LICENSOR — legal entity/owner name]** ("we," "us") grants you a **limited, personal, non-exclusive, non-transferable, non-sublicensable, revocable** license to install and use the App on devices you own or control, solely for your personal, non-commercial use of the platform. This is a **license, not a sale**, of the App software; we retain all rights not expressly granted.

3. License restrictions

You will not, and will not permit others to: (a) copy, modify, or create derivative works of the App except as allowed by law; (b) reverse engineer, decompile, or disassemble the App, or attempt to derive its source code, except to the extent applicable law expressly permits despite this limitation; (c) rent, lease, lend, sell, sublicense, distribute, or commercially host the App; (d) remove or alter any proprietary notices; (e) use the App to build a competing product or to scrape, harvest, or bulk-extract data; (f) circumvent security, rate limits, usage caps, or access controls; or (g) use the App in violation of law or the Terms of Service.

4. Ownership and intellectual property

The App, its code, design, text, graphics, and all related intellectual property are owned by us or our licensors and are protected by law. AI-generated category artwork and other AI-generated assets displayed in the App are labeled as AI-generated and are provided for illustration; they do not depict real brands or real people. Feedback you provide may be used without obligation to you.

5. Updates, and over-the-air (OTA) updates

We may provide updates, including **over-the-air updates** to the App, automatically or on your action. Updates are governed by this EULA unless a separate license accompanies them. You consent to automatic updating where enabled; **[counsel: confirm OTA-update disclosure meets Apple/Google policy for the update mechanism used]**.

6. Closed-loop store credit (no money)

The App may display and let you use **non-cashable, closed-loop store credit ("Site Cash"/points)**. Store credit is **not money**, is not redeemable for cash, has no cash value, and is usable only within the platform per the Terms of Service. This EULA licenses the software only; the economics are governed by the Terms of Service.

7. Third-party products, software, and games (pass-through licensing)

The store lets you search for and acquire **third-party digital products, software, and games** sourced from online retailers/publishers at search time (a zero-inventory model, the same as every other store category). For any such product: (a) your use of that product is governed by **the publisher's/licensor's own end-user license agreement and terms**, which you accept directly with that third party at download/activation; (b) we are a **reseller/conduit**, not the licensor of those products, and grant no license to them under this EULA; (c) title, license scope, region locks, activation keys, and permitted uses are set by that third party; and (d) digital-goods **refund/return** treatment follows the platform's digital-goods policy and the publisher's terms, disclosed at purchase. [**Counsel: confirm reseller-legitimacy, key/download authorization, EULA pass-through presentation, and digital tax/VAT + EULA pass-through are handled by the store's existing sourcing/fulfillment compliance.**] The App may also include **open-source and third-party components** licensed under their own terms; those terms control for those components and are listed in [**an attributions/licenses screen**].

8. Privacy

Your use of the App is subject to the **Privacy Policy**, which describes what data is collected and how it is used (including first-party analytics and any profiling). This EULA does not grant any data rights beyond what the Privacy Policy describes.

9. Term and termination

This EULA is effective until terminated. It terminates automatically if you breach it. We may suspend or terminate your license [**for cause / with notice — counsel to set**]. On termination you must stop using and delete the App. Sections that by their nature should survive (ownership, disclaimers, limitation of liability, governing law) survive termination.

10. Disclaimer of warranties

THE APP IS PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT, TO THE MAXIMUM EXTENT PERMITTED BY LAW. [**Counsel: adjust for jurisdictions (e.g., EU/UK/AU consumer guarantees that cannot be disclaimed).**]

11. Limitation of liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, WE WILL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR LOST PROFITS/DATA, ARISING FROM THE APP; AND OUR TOTAL LIABILITY IS LIMITED TO [**AMOUNT/FORMULA — counsel to set**]. [**Counsel: carve-outs and consumer-law limits by jurisdiction.**]

12. App-store terms (required)

If you obtained the App through the **Apple App Store** or **Google Play**, the following apply in addition:

- **Apple (Licensed Application End User License Agreement minimum terms):** this EULA is between you and us only, **not with Apple**; Apple is **not responsible** for the App or its content; Apple has **no maintenance/support obligation**; to the extent of any warranty not disclaimed, Apple may refund the purchase price and has no other warranty obligation; Apple is **not responsible for product/IP/consumer claims**; and **Apple and its subsidiaries are third-party beneficiaries** of this EULA and may enforce it. [**Counsel: confirm current Apple minimum-terms language.**]
- **Google Play:** this EULA governs over the default Google Play terms to the extent permitted. [**Counsel: confirm Google Play requirements.**]
- You represent you are **not on any prohibited/embargoed list** and comply with export/sanctions law.

13. Governing law and disputes

This EULA is governed by the laws of [**STATE/COUNTRY — counsel**], without regard to conflicts rules. [**Counsel: decide arbitration + class-action-waiver vs. courts + venue; confirm enforceability and consumer-law carve-outs by jurisdiction; align with the Terms of Service dispute clause.**]

14. Changes to this EULA

We may update this EULA; the current version governs continued use, and material changes will be [notified / require re-acceptance — counsel to set, aligned with the Terms re-consent mechanism].

15. Contact

[Legal entity name, contact email/address]. Intended web address: getgoodsggratis.com.

Notes for counsel (decisions to finalize before publishing)

1. **Precedence order** among app-store license terms, this EULA, the Terms of Service, and third-party publisher EULAs (§0).
2. **Licensor identity** — individual vs. an assignee entity (align with the patent/ToS entity).
3. **Third-party pass-through (§7)** — confirm reseller legitimacy, key/download authorization, how the publisher's EULA is surfaced and accepted at download, digital tax/VAT, and region/activation handling ride the store's existing sourcing/fulfillment compliance.
4. **App-store minimum terms (§12)** — verify against current Apple LEULA minimum terms and Google Play policy at filing/submission time (these change).
5. **Governing law / arbitration (§13)** — choose and confirm enforceability + consumer-law carve-outs (EU/UK statutory rights, California, etc.); keep consistent with the Terms of Service.
6. **Warranty/liability (§§10-11)** — jurisdiction-specific limits; do not over-disclaim where consumer guarantees are non-waivable.
7. **OTA updates (§5)** — confirm the auto-update disclosure meets store policy for the update mechanism used.
8. **Open-source/third-party components (§7)** — attach the attributions/licenses list.
9. **Age gate (§1)** — confirm 18+ presentation is consistent across App, ToS, and store listings.
10. **Relationship to Terms of Service / Privacy Policy** — ensure no conflicting clauses; cross-reference cleanly.

This is a draft template, not legal advice, and is not a substitute for review and finalization by a licensed attorney in the relevant jurisdictions.